

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X
DWAYNE JOSIAH, and DEXTER HARRIS,

Plaintiffs,

Index No.:

- against -

CITY OF NEW YORK, KEVIN ADAIR,
and JOHN DOES 1-6

SUMMONS

Venue is designated in
Kings County

Defendants.

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TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED and required to serve upon the attorneys for plaintiffs an Answer to the Complaint in this action within 20 days after service of this Summons, exclusive of the date of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York). In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is CPLR §§ 503 and 504, as the plaintiffs are resident of Kings County, which is also the county in which the events at issue occurred.

Dated: New York, New York
April 20, 2020

LUMER LAW GROUP
Attorneys for Plaintiffs

By:



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Defendants' Addresses:

The City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

P.O. Kevin Adair, Shield 15183
71 Precinct Station House
421 Empire Boulevard
Brooklyn, NY, 11225-3217

NEW YORK STATE SUPREME COURT
COUNTY OF KINGS

----- X
DWAYNE JOSIAH, and DEXTER HARRIS,

Plaintiffs,

Index No.:

- against -

VERIFIED COMPLAINT

CITY OF NEW YORK, KEVIN ADAIR,
and JOHN DOES 1-4,

Defendants.

----- X

Plaintiffs DWAYNE JOSIAH and DEXTER HARRIS, by their attorneys, the
Lumer Law Group, hereby allege upon information and belief as follows:

1. At all times hereinafter mentioned, plaintiff DWAYNE JOSIAH was an adult resident of Kings County, in the City and State of New York.
2. At all times hereinafter mentioned, plaintiff DEXTER HARRIS was an adult resident of Kings County, in the City and State of New York.
3. At all relevant times hereinafter mentioned, defendant City of New York (the “City”) was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York and acts by and through its agencies, employees and agents, including but not limited to, the New York City Police Department (“NYPD”) and its employees and agents.
4. At all relevant times hereinafter mentioned, defendant Kevin Adair was employed by the City as a member of the NYPD and was assigned Shield No.: 15183. Adair is sued herein in his individual capacity.

5. At all relevant times hereinafter mentioned, defendants John Doe 1-4, were individuals employed by the City as members of the NYPD whose identities are unknown to plaintiffs at this time. The Doe defendants are sued herein in their individual capacity.

6. During the early morning hours of January 17, 2018, plaintiffs were traveling in a motor vehicle in the vicinity of New York Avenue and Sterling Street in Brooklyn, New York, when they were stopped by a police vehicle operated by members of the NYPD, who are defendants herein.

7. The plaintiffs were lawfully operating the vehicle and there was no lawful basis for the car stop, nor was it reasonable for the defendants to believe that the stop was lawful.

8. Upon information and belief, three members of the NYPD exited the NYPD vehicle when the car stop was first made.

9. Plaintiffs were directed to exit the vehicle, at which time they were seized by these three officers.

10. While plaintiffs were detained at the scene, at least one more NYPD arrived, carrying additional officers.

11. The Doe defendants and defendant Adair were all present at the scene of plaintiffs' car stop.

12. During the course of the car stop the plaintiffs and the vehicle were searched.

13. Neither of the plaintiffs actually or constructively possessed any contraband nor was any contraband found in the vehicle.

14. Notwithstanding the absence of any lawful basis for the car stop, or the detention and search of the two plaintiffs and the vehicle, as well as the absence of any probable cause to arrest either plaintiff, the defendants formally arrested and handcuffed both plaintiffs and took them into custody.

15. At the time of their arrest, plaintiffs had not engaged in, and were not engaging in any unlawful conduct, or any conduct that could reasonably be viewed as unlawful.

16. Despite the continuing absence of sufficient legal cause to justify the initial seizures, much less their arrests, the plaintiffs were nonetheless arrested, handcuffed, and transported to a local NYPD station house, where they were jailed against their will for a period of time.

17. The plaintiffs were eventually taken to Central Booking, where they were further jailed for a period of many hours.

18. While plaintiffs were still in defendants' custody, the individual defendants completed arrest paperwork in which they claimed that plaintiffs had engaged in various criminal conduct.

19. These general allegations which were drafted for and communicated to prosecutors at the Kings County District Attorney ("KCDA") were materially false and the individual defendants were aware at all times that the allegations were false.

20. The individual defendants either jointly participated in the creation of this arrest paperwork or were otherwise aware that the other individual defendant was creating or causing the creation of this paperwork.

21. On January 17, 2018, defendant Adair swore that he had personal knowledge that, as of January 17, 2018, the vehicle's windows were excessively tinted and that the license plates were improperly displayed, and that he personally observed marijuana on the floor of front passenger's side of the vehicle, and that he personally recovered a loaded handgun from the trunk of the vehicle after the plaintiffs and the vehicle had been transported to the 71 precinct station house.

22. These allegations by Adair were materially false.

23. The decision to arrest the plaintiffs, the fabrication of allegations of criminal conduct and the surrounding circumstances, and the communication of the manufactured and otherwise materially inaccurate and misleading factual claims, were made jointly by the individual defendants, or with each other's knowledge and acquiescence, to justify plaintiff's unlawful arrest and persuade the KCDA to commence plaintiffs' criminal prosecution.

24. To the extent that each or any of the individual defendants did not personally, affirmatively participate in said conduct, each defendant was aware that such conduct was occurring and would continue to occur, and deliberately and consciously failed to intervene in such conduct, despite ample opportunity to do so.

25. The individual defendants are therefore equally liable for the arrest and imprisonment of the plaintiffs, because of their personal actions and their deliberate failure to intervene in the other's unconstitutional conduct, and thus they were, at all relevant times herein, acting jointly and in concert.

26. The KCDA charged both plaintiffs with possessing marijuana and a handgun, and further charged plaintiff Harris with violating two provisions of the VTL with respect to the alleged window tinting and license plate obstruction.

27. Bail was set for both plaintiffs at their arraignments.

28. Both plaintiffs eventually posted bail, but not until both plaintiffs were in custody for several days.

29. Plaintiffs Josiah and Harris were prosecuted under docket numbers 2018KN003256 and 2018KN003257 until September 28, 2018, when all charges against both plaintiffs were dismissed.

30. That at all times relevant herein, the defendants were on duty and acting within the scope of their employment, and their acts were done in furtherance of the City of New York's interests and without legal justification or excuse.

FIRST CAUSE OF ACTION

(Violation of Civil Rights Pursuant to 42 USC §1983)

31. Plaintiffs DWAYNE JOSIAH and DEXTER HARRIS repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

32. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of law.

33. All of the aforementioned acts deprived plaintiffs of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth, Sixth, and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

34. The acts complained of were carried out by the individual defendants in their capacity as police officers, with all the actual and/or apparent authority attendant thereto, and pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

35. The individual defendants, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the NYPD and thereby the City of New York, which is forbidden by the Constitution of the United States.

36. The acts complained of deprived plaintiffs of their right:

- a. not to be deprived of liberty without due process of law;
- b. to be free from seizure and arrest absent probable cause;
- c. to receive equal protection under the law; and,
- d. to be free from unwarranted and malicious criminal prosecution.

37. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional injuries, mental anguish, loss of liberty, economic loss, and the loss of their constitutional rights, in an amount in excess of the jurisdictional

minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

SECOND CAUSE OF ACTION

(False Arrest and Imprisonment Pursuant to 42 USC §1983)

38. Plaintiffs DWAYNE JOSIAH and DEXTER HARRIS repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

39. The individual defendants willfully and intentionally seized, arrested, and caused plaintiffs to be imprisoned without any lawful basis, much less probable cause, and lacked any reasonable basis to believe probable cause existed.

40. To the extent that any of the individual defendants did not affirmatively seize or place plaintiffs under arrest, each such defendant was aware that plaintiffs' constitutional rights were being and would continue to be violated, and failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiffs from harm, despite ample opportunity to do so.

41. As a result of their unlawful arrest by the defendants, plaintiffs were imprisoned and deprived of their liberty.

42. Plaintiffs were conscious of the deprivation of their liberty and did not consent to any such deprivation.

43. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer emotional injuries, mental anguish, loss of liberty, economic loss, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

THIRD CAUSE OF ACTION

(Malicious Prosecution and Denial of a Fair Trial Pursuant to 42 USC §1983)

44. Plaintiffs DWAYNE JOSIAH and DEXTER HARRIS repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

45. The individual defendants fabricated and withheld material evidence, and misled prosecutors in order to manufacture a justification for the initial seizure of the plaintiffs, as well as justify their subsequent decision to arrest and imprison them, despite the absence probable cause.

46. The individual defendants forwarded the fabricated evidence to the KCDA or otherwise knowingly caused the KCDA to be materially misled as to the true circumstances and facts surrounding the seizure and arrest of the plaintiffs, did so with the intent of bringing about and sustaining plaintiffs' criminal prosecution despite their knowledge that there was no probable cause to justify said prosecution, and in so doing caused plaintiffs to be deprived of their liberty.

47. As a result of their deliberate conduct, the defendants caused the initiation of plaintiffs' criminal prosecutions, despite the absence of probable cause to believe that either plaintiff could be successfully prosecuted.

48. Defendants' conduct in bringing about plaintiffs' prosecution was malicious.

49. To the extent that any of the individual defendants did not affirmatively seize or place plaintiffs under arrest, or fabricate evidence or engage in direct communications with the KCDA as alleged herein, each said defendant was aware that the other individual defendant was or would be engaged in this unconstitutional conduct, and that plaintiffs' constitutional rights were being and would continue to be violated, and yet failed to take any steps to intervene in said unconstitutional conduct or otherwise protect plaintiffs from harm, despite ample opportunity to do so.

50. The individual defendants, individually and collectively, subjected plaintiffs to (i) malicious prosecution and (ii) denial of due process and the right to a fair trial through the fabrication of evidence, thereby violating, or aiding and abetting in the violation of, plaintiffs' rights under the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution.

51. By reason thereof, the individual defendants have violated 42 U.S.C. §1983 and caused plaintiffs to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

FOURTH CAUSE OF ACTION(Monell Claim Against The City of New York Pursuant to 42 USC §1983)

52. Plaintiffs DWAYNE JOSIAH and DEXTER HARRIS repeat and reallege each and every allegation set forth in the preceding paragraphs as if more fully set forth at length herein.

53. The individual defendants' false arrest, and malicious prosecution and fabrication of evidence against the plaintiffs to justify their unconstitutional conduct, and their failure to intervene or otherwise act to prevent or mitigate the harms being inflicted by their fellow defendants, were carried out in accordance with an existing plan or policy created or otherwise condoned by the municipal defendant designed to increase the number of arrests made without regard to probable cause.

54. More precisely, under this policy or plan, upon information and belief, officers employed by the NYPD knowingly make arrests of individuals regardless of whether there was any factual basis for the charges. The arresting officer(s) would then make false statements of fact as to seeing the individual(s) being arrested in actual or constructive possession of contraband or otherwise engaging in unlawful conduct.

55. The purpose of this policy or plan was to generate large numbers of arrests to help the NYPD create a false impression of positive activity by their officers, as well as to satisfy internal quotas and resolve internal pressure from more senior commanding officers.

56. In addition, members of the NYPD are evaluated, at least in part, on the basis of their "activity" which is measured by the number of arrests made, search warrants secured,

and other, similar criteria. Thus, members of the NYPD routinely make arrests and engage in other police activity without sufficient legal cause in order to raise their levels of “activity” and improve the perception of their job performance.

57. The NYPD tracks the number of arrests made by each officer but does not take into account the outcome of these arrests, even though this information is available to the NYPD. As a result, members of the NYPD are well aware that (a) they are being evaluated based on, in large part, the number of arrests made, and (b) their supervisors do not care whether these arrests lead to actual criminal prosecutions, much less result in convictions.

58. Under this policy or plan, officers are encouraged or pressured to make as many arrests as possible, which has caused and will continue to cause, its officers, including the individual defendants and their colleagues, to make arrests regardless of whether there was any factual basis for the charges. The officer(s) would then fabricate claims of having seen the person(s) being arrested in possession of weapons or illegal narcotics or otherwise engaged in criminal activity.

59. In addition, members of the NYPD are evaluated, at least in part, on the basis of their “activity” which is measured by the number of arrests made, summonses issued, and other, similar criteria. Members of the NYPD routinely make arrests and engage in other police activity without sufficient legal cause in order to raise their levels of “activity” and improve the perception of their job performance.

60. The policy or plan was kept in effect from, at least, 2006 through, at least, the date of plaintiff's arrest, despite the municipal defendant's knowledge that county prosecutors were often not charging the individuals arrested, or otherwise not actively pursuing their prosecutions, or that there was insufficient evidence to justify the arrests and illegal searches, or that the arresting officers were seeking to bolster the arrests with false allegations, and that the prosecutors often had found insufficient cause to justify the imposition of charges or continued prosecution if charges were filed.

61. Rather than take steps to abolish this plainly unconstitutional and unlawful police, the municipal defendant continued to tacitly endorse this policy of deliberate misconduct.

62. As far back as October 2011, following a bench trial in New York State Supreme Court, Kings County, under indictment number 06314-2008, former NYPD narcotics officer Jason Arbeeney was convicted of planting drugs on two individuals and falsifying arrest reports. Before issuing a verdict of guilty, the trial judge scolded the NYPD for what he described as a "widespread culture of corruption endemic in its drug units." The judge further stated that the testimony demonstrated that the NYPD narcotics divisions maintain a "cowboy culture" and that he was "shocked, not only by the seeming pervasive scope of misconduct but even more distressingly by the seeming casualness by which such conduct is employed."

63. In an Order dated November 25, 2009, in *Colon v. City of New York*, 09-CV-0008 (E.D.N.Y.), the Hon. Jack B. Weinstein stated:

Informal inquiry by the court and among the judges of this court, as well as knowledge of cases in other federal and state courts, has revealed anecdotal evidence of repeated, widespread falsification by arresting police officers of the New York City Police Department. Despite numerous inquiries by commissions and strong reported efforts by the present administration -- through selection of candidates for the police force stressing academic and other qualifications, serious training to avoid constitutional violations, and strong disciplinary action within the department -- there is some evidence of an attitude among officers that is sufficiently widespread to constitute a custom or policy by the city approving illegal conduct of the kind now charged.

64. It is also manifestly clear through the litigation brought in the Eastern and Southern Districts of New York, as well in the state courts throughout New York, that countless thousands of civilians have alleged that members of the NYPD have deliberately arrested them without probable cause. Thus, even if the municipal defendant was not the architect of the policy causing these unlawful arrests, they were certainly on notice of the practice.

65. It is therefore clear that the municipal defendant has not only tolerated, but actively fostered a lawless atmosphere within the NYPD and that the City of New York, at the bare minimum, has been on notice was deliberately indifferent to the risk that the undue emphasis on arrest quotas, or minimum activity levels, particularly when coupled with a deliberately indifferent level of supervision, would lead to the violation of individuals' constitutional rights in general, and caused the violation of plaintiffs' rights in particular.

66. By reason thereof, the municipal defendant has violated 42 U.S.C. §1983 and caused plaintiffs to suffer physical and emotional injuries, mental anguish, loss of liberty, and the loss of their constitutional rights, in an amount in excess of the jurisdictional minimum

of this Court, and to be further entitled to punitive damages in a sum to be determined at trial.

WHEREFORE, the plaintiffs demands judgment against defendants jointly and severally as follows:

- i. actual and compensatory damages against each defendant in an amount to be determined at trial;
- ii. punitive damages against each individual defendant in an amount to be determined at trial;
- iii. statutory attorney's fees pursuant to, *inter alia*, 42 U.S.C. §1988 and New York common law, disbursements, and costs of the action; and,
- iv. such other relief as the Court deems just and proper.

Dated: New York, New York
April 20, 2020

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By: 

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